

Constitution

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- Five seats on council. One is for a member who lives off reserve.
- Fixed election day. Council can't move it.
- Nobody votes on their own pay or contract.
- Members adopt and change the codes by secret ballot. Council can't do it alone.
- A short list of protected rules takes a bigger vote to weaken.

Why this draft is here

Every other code in this set leans on this one. It sets who holds power, what they can't do alone, and how members keep the final say over the rules.

1. Purpose and authority

- 1.1 This constitution sets how the First Nation governs itself so that no one person can spend public money, hand out a benefit, or change the rules alone.

- 1.2** It is made as the custom of the band under the Indian Act, subsection 2(1), in the definition of council of the band, paragraph (d). That paragraph applies to a band that does not hold elections under Indian Act section 74 and is not named in the schedule to the First Nations Elections Act.

Check before a vote

if the First Nation holds elections under Indian Act section 74, or is named in the schedule to the First Nations Elections Act, this constitution cannot replace that statute. Under First Nations Elections Act section 42, a First Nation leaves that schedule only with a community election code approved by a majority of the votes cast in a secret vote in which a majority of the electors took part.

- 1.3** Indian Act subsection 2(3) says a power of the band is used only with the consent of a majority of the electors, and a power of council is used only with the consent of a majority of the councillors present at a meeting duly convened, unless the Act says otherwise. This constitution follows those counts.
- 1.4** This constitution does not surrender or designate reserve land. That can only happen under Indian Act sections 37 to 41. A resolution that tries to surrender or designate land any other way is void.
- 1.5** Constitution Act, 1982, subsection 35(1) says: "The existing aboriginal and treaty rights of the aboriginal peoples of Canada are hereby recognized and affirmed." Nothing in this set takes away from any Aboriginal or Treaty right, including rights under Treaty No. 8.
- 1.6** Canadian Charter of Rights and Freedoms, subsection 15(1) says: "Every individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination and, in particular, without discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability." This constitution adopts that equality rule as the First Nation's own rule, so a member does not have to win a court argument to rely on it.
- 1.7** The First Nations Financial Transparency Act applies to every band except one that is party to a comprehensive self-government agreement given effect by an Act of Parliament. Until that changes, the Act applies alongside this set.

2. Definitions

- 2.1 In this constitution and every code in this set:
- Appeal body means the three electors elected under Part 7 and the appeals and complaints code.
 - Chief means the person elected to that office under the election code.
 - Council means the chief and the councillors in office.
 - Councillor means a person elected to a councillor seat under the election code.
 - Off-reserve seat means the one councillor seat that only an elector who ordinarily lives off reserve may hold.
 - Elector has the meaning in Indian Act subsection 2(1): a person registered on a Band List, 18 years of age or older, and not disqualified from voting at band elections.
 - Immediate family means a spouse, a common-law partner, a child, a parent, or a sibling. Child includes a legally adopted child and a child adopted in accordance with Indian custom.
 - Member means a person whose name is on the Band List, or who is entitled to have it there, whether they live on reserve or off reserve.
 - Post means to put on the First Nation's website and on the notice board at the band office and the urban office, and to send by email to every member who has asked for notices.
 - Records officer means the employee named in writing to keep the public record. If no one is named, the appeal body must name one within 14 days.
 - Resolution means a decision passed at a council meeting that meets the council procedure, numbered, and signed by the councillors who voted for it.
- 2.2 A word defined here has the same meaning in every code in this set.

3. Who it binds

- 3.1 This constitution binds the chief, every councillor, and every employee and contractor when they handle the First Nation's money, land, housing, jobs, or programs.
- 3.2 It applies to members on reserve and off reserve alike.
- 3.3 It does not cover child welfare, policing, or taxing reserve land. Those need their own laws. An intoxicant by-law may be made only under Indian Act section 85.1, after a majority of the electors who vote at a special meeting called for that purpose agree.

4. Council

- 4.1 Council has five seats: one chief and four councillors.
- 4.2 One councillor seat is the off-reserve seat. To run for it, a person must live off reserve on the day they are nominated. Every elector votes for that seat, wherever they live.

- 4.3** The other three councillor seats are open to any elector. Council cannot change the number of seats or drop the off-reserve seat by resolution.

Check before a vote

the off-reserve seat limits who may hold one seat. It does not limit who may vote. A lawyer should read it against Charter subsection 15(1) before members vote.

- 4.4** A council meeting needs three of the five people present. If fewer than three people hold office, they may meet only to ask the electoral officer for a by-election. They must not spend money, hire, or hand out a house, a job, or a payment.
- 4.5** A decision passes only if a majority of the people present vote yes. A text, an email, or a phone call is not a meeting and is not a decision.
- 4.6** The term is four years. It starts at noon on the 14th day after election day and ends at noon on the 14th day after the next election day. The 14 days are for handover.
- 4.7** A person may serve two terms in a row in the same office, then must sit out one full term. The electoral officer must reject a nomination that breaks this rule, in writing, within 2 days after nominations close.
- 4.8** Election day is the second Saturday in June every fourth year. Council must not postpone it. A resolution that postpones election day is void.
- 4.9** The electoral officer may move election day only if voting can't be held because of a fire, a flood, or an order of a public health officer or a court. The new day must be within 30 days. Written reasons must be posted within 2 days. A delay does not make any term longer.

5. Pay and personal benefit

- 5.1** A chief or councillor must not move, second, debate, or vote on a resolution that sets or pays their own pay, honorarium, or travel, or a contract with them or their immediate family. They must leave the room before the item is called.
- 5.2** A vote cast against this rule is void, the resolution is void, and any money paid under it must be repaid within 30 days.
- 5.3** Until it is repaid, the person is not paid an honorarium and may not sit at council. The appeal body must post the breach within 7 days of confirming it.
- 5.4** Pay, honoraria, and travel rates must be posted at least 14 days before council votes on them.

6. How laws are made

- 6.1** Council may pass a resolution to run day to day business. Council may not adopt, amend, or suspend a code in this set by resolution. Only members can, under Part 9.
- 6.2** Indian Act subsection 81(1) lets council make by-laws that are "not inconsistent with this Act or with any regulation made by the Governor in Council or the Minister." A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict.
- 6.3** Indian Act paragraph 81(1)(r) caps a by-law penalty at a fine of \$1,000, 30 days in jail, or both. This set does not create an offence. The consequences in these codes are about office, pay, repayment, and eligibility.

- 6.4** If council also wants a spending rule made as a money by-law, Indian Act section 83 applies and the Minister's approval is required. Council must send it to the Minister within 30 days of the member vote and post the reply within 7 days of getting it. Until then, the rule still binds as a condition of office and employment.
- 6.5** A by-law made by council must be published under Indian Act section 86. It comes into force the day it is first published, or a later day it names.

7. Checks that do not depend on goodwill

- 7.1** The band money code, the spending and contracts code, the right to information code, the whistleblower code, and the appeals and complaints code are part of this constitution's structure. Council must not suspend them.
- 7.2** The appeal body is three electors who are not on council, not employees, not contractors, and not immediate family of anyone on council.
- 7.3** Electors elect the appeal body for three years, by secret ballot, on election day. The first appeal body is elected within 60 days after this constitution comes into force. Two members make a quorum. Council must not appoint the appeal body. A council appointment is void.
- 7.4** If electors have not elected an appeal body, the sitting body carries on for up to 90 days. If there is none, any 10 electors may ask the electoral officer to call the vote on 21 days' notice.
- 7.5** When council does not do something this set requires by a deadline, the consequence listed in the code applies on its own. It does not need a council vote.

8. Protected rules

- 8.1** These are protected rules. A change that removes or weakens one needs the larger vote in Part 9:
- the ban on voting on your own pay, honorarium, travel, or contract;
 - the \$10,000 limit on what one person can commit, the two-signature rule, and the public call for bids over \$25,000;
 - posting the budget, the quarterly statement, the audited statements, and the remuneration schedule;
 - the fixed election day and the term limit;
 - the off-reserve seat;
 - the conflict register and the recusal rule;
 - the right to information deadlines and the closed list of exceptions;
 - the whistleblower channel to the appeal body and the ban on reprisal;
 - the independence of the appeal body;
 - the public goals and quarterly reports;
 - the removal petition;
 - the rule that members, not council alone, adopt and change the codes.

9. How members adopt and change the codes

- 9.1** A code in this set is adopted, amended, or repealed only by a secret ballot vote of the electors run by the electoral officer.

- 9.2 A code is adopted, or an ordinary amendment passes, if a majority of the votes cast are yes and at least 25 percent of all electors cast a ballot.
- 9.3 A change that removes or weakens a protected rule passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 9.4 Membership rules follow Indian Act section 10, which needs the consent of a majority of the electors. The membership code says how.
- 9.5 At least 45 days before the vote, the electoral officer must post the full text, a plain summary of what changes, and the ballot question, and must send them to every elector with a known mailing or email address, on and off reserve.
- 9.6 Mail ballots must be available to every elector. At least one information session must be held on reserve and one online before the vote, and both must be recorded and posted.
- 9.7 Each code, or each major change, gets its own ballot question. Unrelated changes are not bundled.
- 9.8 The electoral officer must post the count within 3 days and sign a written certificate of the result.
- 9.9 Once a vote has been properly called, no single person can halt, delay, or defund it. Only a court order made on notice can stop it. A court filing by itself does not.
- 9.10 Where a law already in force sets its own rule for being replaced, the vote must meet that rule as well. A lawyer should compare the two before the vote.
- 9.11 A resolution that tries to adopt, amend, or suspend a code without this vote is void on the day it is signed. Each person who signed it may not move a money resolution for 90 days. The appeal body must post the breach within 14 days.

10. Review and coming into force

- 10.1 This constitution comes into force on the day after the electors approve it under Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 10.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 10.3 The appeal body reviews this constitution every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 10.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 10.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.